Ex Tempore Judgment

UNIVERSITY OF ZIMBABWE
versus
VENGAI MUGABE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE, 14 July 2026

Opposed application for vindication

T. Chagudumba, for the applicant
T. E. Gumbo, for the respondent

MAMBARA J

[1] This is an application for vindication. The applicant seeks, first, the return of a Toyota Land Cruiser motor vehicle, registration number AEX 3972, and, second, repayment of USD 3 500.00 said to have been paid pursuant to the Supreme Court process as security or legal costs. The factual foundation of the claim, as it emerges from the founding affidavit, the opposing affidavit, the answering affidavit, the letters to and from the Sheriff, the proof of payment, and the judgments annexed to the record, is substantially common cause. What divides the parties is the legal effect of the Constitutional Court judgment, Judgment No. CCZ 17/25, on the respondent's continued retention of those gains.

[2] The applicant's case is straightforward. It says the respondent obtained the motor vehicle through attachment and delivery effected by the Sheriff in execution of HCH 29/23, and that it paid USD 3 500.00 pursuant to the Supreme Court proceedings in SC 671/23. It says both those juridical routes were later nullified when the Constitutional Court set aside the Labour Court proceedings under LC/H/429/22 and judgment LC/H/317/22, together with the Supreme Court proceedings under SC 671/23 and judgment SC 34/25, in their entirety. On that premise, the applicant submits that the respondent no longer has any legal basis to retain what was obtained through those nullified processes.

[3] The respondent resists the application on two main grounds. First, he raises a jurisdictional objection, contending that the dispute remains an employment matter for the Labour Court and that the High Court is being asked, impermissibly, to revisit a labour entitlement. Second, on the merits, he says that the labour officer's draft ruling survives by virtue of s 128 of the Labour Act, and that this surviving determination is the source of his right to remain in possession of the motor vehicle and to resist repayment of the money. He further avers that there is a pending Labour Court appeal under LCH 18/26, and that those labour processes should run their course before this Court entertains vindication.

[4] A useful starting point is the nature of the present enquiry. In *Argyle Farm (Pvt) Ltd* v *Municipality of Chinhoyi* (24-HH-172), as quoted in the applicant's heads of argument, the Court held that, for a claim in *actio rei vindicatio* to succeed, the claimant must prove ownership and that the person in possession holds the property without consent or lawful cause. The same proposition is reinforced in the applicant's heads by *Nzara* v *Kashumba* 18-SC-018. I accept that formulation. The enquiry here is therefore not whether the respondent may ultimately, through proper labour processes, become entitled to the vehicle or its value. The enquiry is whether, now, on this record, his current possession, obtained through the nullified court route, is possession with lawful cause.

[5] The record sufficiently establishes the applicant's proprietary entitlement for purposes of this application. The founding affidavit identifies the vehicle as the applicant's asset; the Sheriff's documents reflect attachment of the vehicle from the applicant; and the respondent does not assert that ownership passed to him by sale or other transfer. His case is not one of ownership. His case is one of entitlement to retain possession because of the labour officer's determination. The exact registration documents for the vehicle are not specified in the extracted OCR record, but the absence of a title dispute on the papers makes that omission immaterial for present purposes.

[6] The decisive question is therefore whether the respondent's current possession has lawful cause after CCZ 17/25. In my view, it does not. The Constitutional Court's reasoning is emphatic. At paras [57] to [63], it held that there had been no valid affidavit by the labour officer for confirmation of the draft ruling, no valid application legally pending before the Labour Court, no jurisdiction properly exercised by that Court, and thus no valid Labour

Court judgment from which an appeal could competently lie. At paras [71] to [77], the Constitutional Court accordingly struck the direct-access application off the roll, but then, in the exercise of its review powers under s 19 of the Constitutional Court Act [*Chapter 7:22*], expressly set aside the proceedings before the Supreme Court under SC 671/23 together with Judgment No. SC 34/25, and the proceedings of the Labour Court under LC/H/429/22 together with Judgment No. LC/H/317/22, in their entirety.

[7] Once that happened, the jurisprudential consequences followed in the ordinary way. In *MacFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169, cited in the applicant's heads and echoed in *Ngani* v *Mbanje & Anor*; *Ngani* v *Mbanje & Anor* 1987 (2) ZLR 111 (HC) and *Sibanda J* v *Dowood Services (Pvt) Ltd & Anor* (25-HB-120), the principle is that a nullity is incurably bad and everything founded on it falls with it. The applicant's heads also correctly invoke *TBIC Investments (Pvt) (Ltd) & Chidawanyika P.* v *Mangenje. K, Min. Lands, Reg of Deeds & AG* (18-SC013) for the proposition that a nullity is, in law, an event that never happened. Those are not decorative citations; they describe exactly the consequence of CCZ 17/25 for the execution proceedings that delivered the vehicle to the respondent.

[8] That is why *Zimbabwe Mining Company (Pvt) Ltd* v *Outsource Security (Pvt) Ltd & Deputy Sheriff & Ors* (16-SC-050) is also apposite. As quoted in the applicant's heads, the Supreme Court there said: "The attachment was a nullity and the subsequent sale was also a nullity." The present record is even more direct. The motor vehicle was attached and delivered to the respondent through execution resting on HCH 29/23, whose foundation lay in proceedings later nullified by the Constitutional Court. If attachment grounded on a nullity is itself a nullity, then delivery to the judgment creditor pursuant to that attachment cannot mature into lawful possession merely because physical possession changed hands.

[9] The restorative consequence is captured in *ZUPCO* v *Mashinge B* (21-SC-021), cited in the applicant's heads of argument. There the Supreme Court held that, upon the setting aside of proceedings as a nullity, both procedural and substantive rights are restored to the position immediately before the nullified process. That, in my view, is the correct lens here. The point is not to confer a new right on the applicant. It is to restore the parties to the position that prevailed before the Sheriff, acting under a court process later found to be a nullity, removed the vehicle from the applicant and handed it to the respondent.

[10] I do not accept the respondent's submission that the phrase used by the Constitutional Court — namely, that "the only legal process that stands unaffected is the draft ruling by Zhakata" — entitles him to retain the fruits of the nullified Labour Court and Supreme Court processes. That submission conflates two different things: the survival of a disputed labour instrument, on the one hand, and the lawfulness of possession already acquired through invalid execution, on the other. The Constitutional Court did not say that every gain procured via LC/H/317/22, HCH 29/23, and SC 671/23 would remain undisturbed. It said only that the draft ruling itself stood unaffected. The present application concerns gains obtained through the invalidated route, not the abstract survival of the draft ruling.

[11] The record itself demonstrates the distinction. The founding affidavit states that the vehicle was attached, seized, and delivered to the respondent by the Sheriff pursuant to the order registered under HCH 29/23. The Sheriff correspondence after CCZ 17/25 also treated the matter on that footing. Indeed, in the respondent's own attorneys' letter of 16 October 2025, they did not say that a completed s 128 execution process already existed and independently grounded possession. They instead argued that the draft ruling remained unaffected and added that it was the applicant's prerogative to obtain a court order establishing its position. That letter is consistent with an acknowledgement that possession had been achieved through the earlier process, not through a fresh and self-contained s 128 registration and execution.

[12] The later steps in LCH 18/26 reinforce this conclusion. The notice of appeal filed on 7 January 2026 records that the draft ruling "was not registered with the Labour Court in terms of Section 93(5a) and (5b)" and notes that the second respondent had applied for registration of the draft ruling with the High Court under HCH 6546/25 on 19 December 2025. In other words, the very record on which the respondent relies shows that the surviving draft ruling still required separate statutory treatment and further litigation. That is precisely why it cannot retrospectively justify retention of property already obtained through the earlier, nullified path.

[13] I therefore reject the proposition that this Court is interfering with the jurisdiction of the Labour Court. The respondent relies on *Nhari, Mugabe & 2 Ors* SC161/20, *TN Harlequin*

Luxaire Limited v *Mberikunashe Matsvimbo & 14 Ors* SCB84/22, *Nyanzara* v *Mbada Diamonds (Pvt) Ltd* 2016 (1) ZLR (H) 195 at 206, and *Muchenje* v *Mutangadura & 5 Ors* HH21/21 to submit that employment questions belong in the Labour Court. I agree with the general proposition. But this application does not determine whether the respondent was unfairly dismissed, whether the labour officer correctly quantified damages, whether the vehicle ought ever to have been awarded as a contractual benefit, or whether the appeal in LCH 18/26 will succeed. Those are labour issues. The present issue is narrower: whether possession and money obtained through court processes that have been set aside in their entirety can lawfully be retained. That is not an appeal on labour merits. It is a restorative consequence of nullity.

[14] The same analysis resolves the claim for USD 3 500.00. The proof of payment in the record shows a transfer of USD 3 500.00 on 5 February 2025 from Atherstone & Cook NOSTRO FCA OD006-Corporate Current Account CLIENTS to CHINAWA LAW CHAMBERS, with a beneficiary reference identifying the relevant matter. The founding affidavit states that the money was paid by way of security of costs pursuant to the appeal filed by the applicant against the High Court judgment in HCH 29/23, and the demand letter of 28 January 2026 expressly links the payment to the Supreme Court judgment in SC 671/23.

[15] Once the Constitutional Court held at para [63] that there could not have been a valid appeal before the Supreme Court because the Labour Court confirmation proceedings were a nullity, and once it then set aside the Supreme Court proceedings and judgment at para 77, the legal foundation for payment of that USD 3 500.00 disappeared. On the papers before me, the respondent identifies no independent cause entitling him to keep that exact payment. He answers instead that the applicant owes him a much larger sum under the labour officer's ruling. That answer does not avail him in this application. The larger labour claim is, on the respondent's own version, the subject of pending proceedings and was not finally resolved. The specific payment of USD 3 500.00 was made because of the Supreme Court process, and when that process fell, the payment became repayable.

[16] The authorities cited in the applicant's heads make the point well. In *Jotham Chirongoma* v *TDG Logistics and Regent Insurance* HB-06-11, as summarized there, a security-for-costs order founded on a nullity gave rise to a refund obligation. In *Madzima.*

C.v *Mate. D.* (17-HH-086), again as quoted in the heads, the Court emphasized that where agreements are void ab initio, no rights flow from them and monies paid may be reclaimed. Those authorities are entirely consistent with ordinary principle and with the logic of the Constitutional Court's judgment in this matter.

[17] I would add this. The respondent's argument, if accepted, would produce an unattractive and irrational result. It would mean that the Constitutional Court could set aside the Labour Court and Supreme Court proceedings in their entirety, declare them a nullity, and yet the immediate fruits of those very proceedings would remain with the successful execution creditor unless and until some further process compelled restoration. That would empty the declaration of nullity of much of its practical force. The law does not favour such an incoherent result. The better view is that nullification restores the pre-existing position, while leaving parties free to reassert any surviving rights through legally competent procedures.

[18] I therefore conclude that the applicant has established the elements necessary for vindication. It has established a sufficient proprietary entitlement to the motor vehicle; it has shown that the respondent's current possession is not supported by lawful cause because the process by which possession was obtained was nullified; and it has shown a discrete restitutionary entitlement to repayment of USD 3 500.00 paid under the similarly nullified Supreme Court process.

[19] As to interim or preservation relief, I consider it appropriate, in order to give efficacy to the vindicatory order, to restrain the respondent from alienating, encumbering, disposing of, concealing, or parting with possession of the vehicle pending delivery up or seizure by the Sheriff. The record does not specify the present location of the vehicle or its present condition. That uncertainty makes a preservation order prudent and proportionate.

[20] On costs, the applicant seeks costs of suit. The respondent seeks punitive costs against the applicant. I am not persuaded that this is a proper case for punitive costs against either side. The respondent's reliance on s 128 and the supposed continuing force of the labour officer's draft ruling is, in my assessment, mistaken as an answer to present possession, but it

is not so frivolous as to justify an attorney-and-client order. The ordinary rule should therefore apply: costs follow the event.

[21] In the result, the following order will issue.

Order

[22] It is ordered that:

[23] The respondent be and is hereby directed to deliver to the applicant the Toyota Land Cruiser motor vehicle, registration number AEX 3972, within 48 hours of service of this order.

[24] Pending such delivery, the respondent is interdicted from selling, alienating, encumbering, hiding, transferring, or otherwise parting with possession or control of the said motor vehicle.

[25] In the event of failure to comply with para [23] above, the Sheriff be and is hereby authorized and directed to seize and attach the said motor vehicle wherever found and to hand the same to the applicant.

[26] The respondent shall pay to the applicant the sum of USD 3 500.00, together with interest thereon a *tempore morae* from 28 January 2026 to the date of full payment.

[27] The respondent shall pay the costs of suit on the ordinary scale

MAMBARA J: ……

Atherstone & Cook, applicant's legal practitioners
Chinawa Attorneys, respondent's legal practitioners